Inclusive Economy & Sustainability
Planning Services
Swindon Borough Council
Civic Offices (Wat Tyler House Floor 5)
Euclid Street
Swindon
SN1 2JH

Email: cil@swindon.gov.uk
Website: www.swindon.gov.uk

Taylor Wimpey Bristol
Joshua Kittlety - Design & Planning Manager
Taylor Wimpey Bristol
730 Waterside Drive
Aztec West
Almondsbury
Bristol
BS32 4UE

Ref: S/RES/24/0923
Liability Notice Ref: LN00000342
(dated 17 March 2025)
Date: 17 March 2025

Dear Taylor Wimpey Bristol,

Community Infrastructure Levy (CIL)
LIABILITY NOTICE
Regulation 65, Community Infrastructure Levy Regulations (2010), as amended

Site: Land At Parcels R8 And R9 (East And West Of Old Vicarage Lane), Land North Of A420, New Eastern Villages, South Marston, Swindon
Ref: S/RES/24/0923
Description: Erection of 134 dwellings and provision of public open space with associated infrastructure and earthworks (layout, scale, appearance and landscaping) - Reserved Matters from previous outline permission S/OUT/13/1555.

Privacy Notice

CIL Liability

This notifies you that you will be liable to pay **£0.00** of Community Infrastructure Levy to Swindon Borough Council as CIL collecting authority on commencement of development of planning permission S/RES/24/0923. This charge is levied under SBCs CIL Charging Schedule, and S211 of the Planning Act 2008. Further details on the CIL payment procedure can be found in the payment section below.

SBC

To receive the latest updates on Swindon's roads, plus council and community news, to your inbox visit www.swindon.gov.uk/newsletter. Follow us on 𝕏 @SwindonCouncil or SwindonBoroughCouncil

Description	Chargeable Area (sqm)	Rate	Index	Area Charge	Relief	Total
Residential Zone 1	14655.08	£0.00	1.306	£0.00	£0.00	£0.00

CIL Total for this charging authority	Total Liability for SBC	£0.00
Total CIL Liability		**£0.00**

Area Totals (sqm)	Total Development	14,655.08
	Demolitions*	0.00
	Existing Use*	0.00
	Chargeable Area (SBC)	14,655.08

* Demolished floorspace and existing floorspace are only included above if eligible for deduction from the chargeable area. Existing floorspace deductions will be automatically allocated to the relevant floorspace and/or demolition deduction apportioned in accordance with regulatory requirements as set out above. In most circumstances this cannot be applied automatically. If the CIL Authority doesn't have information of sufficient quantity or quality to enable it to establish if any building to be:

- demolished;
- part demolished; or
- contains retained parts

that meets the relevant definition of a building, on the relevant land, at the relevant time under the CIL Regulation 40 Schedule 1 test for retained parts of in-use buildings, or other retained buildings, it may deem the area to be zero and no deductions will apply.

As this forms part of the chargeable amount calculation the CIL Regulation 113: Chargeable Amount Review request process would apply.

How we calculated this figure

The CIL Total Area Charge = Chargeable Area (A) x Rate (R) x Index (I)

The Chargeable Area is the gross internal area of the total development less the floorspace of any existing buildings which are eligible deduction.

To be eligible for deduction, the existing buildings must be situated on the relevant land on the day planning permission first permits the chargeable development and be 'In Use'.

A building is defined as being '**In Use**' if part of the building has been in continuous use for a period of at least six months within the period of three years ending on the day planning permission first permits the chargeable development.

The charge will be index linked based on the following formula:

Ip/Ic where Ip is the index figure for the year in which planning permission was granted and Ic is the index figure for the year the charging schedule took effect (2012), using the national All-in tender price index published by the Building Cost Information Service (BCIS).

Information on how indexation affects adopted CIL Charging Schedule rates is published in a CIL Annual Rate Summary which can be viewed on the Swindon Borough Council website here.

New liability notices may be issued

Any change in the details contained in this notice which affect interested persons and/or the calculation of the chargeable amount may lead to the Council issuing a new liability notice. Changes requiring a new calculation of the chargeable amount or just the re-issue of a replacement notice may arise from e.g.

- A change to the liable party
- A change to those that have a material interest in the relevant land
- Granting of a Community Infrastructure Levy relief or exemption and/or any subsequent change to such
- Any existing buildings deducted from the CIL-liable floorspace are subsequently found not to have qualified as being 'In Use' (defined above) for a continuous period of at least six months within the period of three years ending on the day planning permission first permits the chargeable development.

Please note it is your responsibility to notify us if:

- There is a change in the liable party. In this case, please complete a Withdrawal of Assumption of Liability form and or a Transfer of Assumed

Liability form.

- The liable party's contact details change.
- A change in the material interest in the relevant land relating to land ownership and/or relevant leasehold owners. In this case please submit a copy of the submitted Land Registry TR1 and/or TP1 form with accompanying plan or fully updated office copy Title Deeds and accompanying plan whichever is the earlier.
- There are any changes in the floorspace details involved in the chargeable development. In this case, please submit an explanation for further consideration accompanied by the relevant approved plans.

Are you eligible for relief from CIL?

Relief is not currently offered, however may in certain circumstances be capable of being applied for.

CIL Exemption
Swindon Borough Council as CIL Charging Authority for its administrative area **doesn't** have CIL exceptional circumstances relief switched on and available.

Exemptions are not capable of being claimed under all circumstances e.g. no valid claim can be submitted if the relevant development is permitted under a retrospective or part retrospective decision. Any exemption claim submitted will be assessed by the CIL Authority and a decision made as to its validity, and if valid whether it can be granted exemption.

If the development comprises a self-build dwelling(s), residential extension and or residential annex, and it is not retrospective, it *may* qualify for exemption from payment of CIL. This will require the correct CIL process to be followed including the submission of the following forms and documents:

- For Self-Build Housing Exemption
    - CIL Form 2: Assumption of Liability to pay CIL Form
    - CIL Form 7: Self-Build Exemption Claim Form: Part 1 (review Part 2 content)
    - SBC Self-Build Qualification Form
- For Self-Build Residential Extension Exemption
    - CIL Form 2: Assumption of Liability to pay CIL Form
    - CIL Form 9: Self-Build Residential Extension Exemption Claim Form
    - SBC Residential Extension Qualification Form
- For Annex Exemption
    - CIL Form 2: Assumption of Liability to pay CIL Form
    - CIL Form 8: Self Build Residential Annex Exemption Claim Form
    - SBC Annex Exemption Qualification Form

CIL Relief
If you are a charity or intend to incorporate social housing into the development, and the development is not retrospective, you *may* be eligible for mandatory relief resulting in a reduction (partial or entire) in CIL liability, subject to further restrictions.

If you wish to apply for relief from CIL then the correct CIL process must be followed prior to commencement of development and a decision made and issued prior to commencement by submitting a valid

1. CIL Form 2: Assumption of Liability to pay CIL;
2. CIL Form 10:Claiming Exemption or relief and all the necessary accompanying documents

You may be asked to supply additional information to allow consideration of your claim.

More information on claiming relief or exemption can viewed as follows:

- PPG on line - Community Infrastructure Levy
- Planning Portal CIL Forms

When will this CIL amount be due for payment?

The CIL amount will be triggered by commencement of development.
If the CIL process and subsequent payment procedure is followed correctly, this CIL amount will be payable in the following manner:

1 instalments: 100% of the levy 60 days from commencement.

Precise details of the payment arrangements will be contained in the Demand Notice that will be sent following submission of a valid Commencement Notice, or generated by the Council as CIL charging and collecting authority under a deemed commencement date. Instalment payments will be subject to the adopted CIL Payment by Instalment Policy operating at the time the Demand Notice is issued, unless the right to pay by instalment has been forfeited in advance or after issue of demand for payment as a result of failing to make payment by the due date specified in the Demand Notice.. This CIL liability notice is not a formal demand for payment of CIL and cannot be used to make payment of CIL.

Note: *Commencement includes demolition for CIL purposes.*

It is critical that the correct CIL process is followed in the right order prior to commencement to avoid default situations occurring, and then subsequently compliance with post CIL Demand requirements.

The current adopted CIL Payment by Instalment Policy (26 March 2015) is set out below:

Amount of CIL Payable	Number of Instalments	Potential Instalment Policy
Under £20,000	1	Single Instalment - Full amount payable within 60 days of commencement
£20,000 or greater but less than £75,000	1	Single Instalment - Full amount payable within 180 days of commencement
£75,000 or greater but less than £250,000	2	25% within 120 days of commencement 75% within 210 days of commencement
£250,000 or greater but less than £500,000	3	25% within 120 days of commencement 35% within 360 days of commencement 40% within 540 days of commencement
£500,000 or more	4	10% within 120 days of commencement 30% within 360 days of commencement 40% within 720 days of commencement and 20% within 900 days of commencement

You must notify Swindon Borough Council of the date on which you intend to commence development by submitting a valid Commencement Notice**.**

Payment of the CIL chargeable amount *may* be due in full on the day that development commences if no valid commencement notice has been submitted a minimum of 1 day prior to the proposed commencement date, or cannot be submitted. If a valid commencement notice has not been or cannot be submitted before development commences, payment of the CIL amount will be due in full on the day that the collecting authority believes the development to have commenced. Mandatory Late Payment Interest will, and non-mandatory surcharges may also be applied.

Payment by Land

Some or the entire CIL chargeable amount may also be paid by transferring land to the CIL charging authority or another beneficiary agreed with the charging authority (known as a land payment). This can only be considered if the land in question is t be used to provide for or facilitate in any way the provision of infrastructure to support the development of the Charging Authority's area and it meets all the other criteria. This is likely to be a very rare circumstance and

therefore not relevant to most development proposals. Please see the Planning Portal note on Paying CIL in the Form of Land for further information.

If you think that this affects the development detailed above please contact the CIL Team for more information. Please note that an agreement to make a land payment must be entered into before the chargeable development is commenced.

Consequences of non payment

If you fail to follow the correct CIL process, or subsequently after CIL is demanded for payment, make the payments in time following the payment procedure described above and as will be set out on any Demand Notice issued, the collecting authority may impose surcharges on this liability. The CIL authority has extracted all the relevant Surcharges and Late Payment Interest regulations and published these here.

Persistent failure to pay CIL liabilities due may result in the collecting authority imposing surcharges, serving a CIL stop notice prohibiting further development on the site and/or taking action to recover the debt due through the Magistrates Court (which in certain circumstances could lead to imprisonment) or through via the land charge. Please see the CIL guidance by the relevant Government Department how payment of the Community Infrastructure Levy is enforced for further information.

The amount of CIL liability in this notice is a local land charge

This CIL liability has been registered as a local land charge against the land affected by the development under the decision referenced in this notice. This charge will only be cancelled on either expiry of the CIL liable development without commencement; full payment of this liability and the total chargeable amount demanded for payment; and/or the expiry of the relevant clawback period where exemption restrictions have been complied with, or where a disqualifying event has occurred, on receipt of the full payment of the amount due for payment for each disqualifying event, or at the end of the expiry of the clawback period. For more information on disqualifying events please visit the CIL Planning Practice Guidance.

The CIL amount demanded for payment may change as a direct result of the content of future Demand Notices.

Do you think we have made a mistake in our calculations?

Under some circumstances you may be entitled to request a review of the chargeable amount calculation.

If your are entitled to such, you can ask us to review our calculation. A CIL Regulation 113 Chargeable amount review must be submitted in writing **within 28 days** starting with the date of the notice. Any such review request must comply with the regulatory restrictions otherwise it will not be a valid request.

If you are unhappy with the calculation following this review, you can appeal to the Valuation Office Agency. A request for review must be completed in order to progress to an Appeal. Please see the government guidance on the Appeals Procedure for further information.

In circumstances where no right to progress a CIL Regulation 113 Chargeable Amount Review request exists, there is no ability to progress a CIL Chargeable Amount Appeal.

Recipients of this Liability Notice

Other recipients of this notice include the following (where relevant):

- Those jointly liable to pay CIL or those who have jointly assumed liability to pay CIL.
- Each person known to the authority as an owner of the relevant land.
- The person who has applied for planning permission or submitted a notice of chargeable development, where this is different to those above.

Please be aware that as of the date of this notice no party has assumed liability for CIL, if no assumption of liability is received prior to commencement of the development all parties listed may receive surcharges in line with the CIL Regulations and the liable amount for CIL will be required to be paid immediately with no option to pay by instalments if a payment policy is in place.

Recipients of this notice who are potentially liable to pay CIL:	
Name and address of recipient	**Category of recipient**
Taylor Wimpey Bristol Joshua Kittlety - Design & Planning Manager Taylor Wimpey Bristol 730 Waterside Drive Aztec West Almondsbury Bristol BS32 4UE	Liable Party Applicant

This notice has also be copied to the following recipients:	
Name and address of all recipient(s) of this notice	**Category of recipient**
None	

Please note, the agent acting on behalf of the applicant may also receive a copy of the Liability Notice.

Next Steps

The Council as CIL charging and collecting authority must be notified before development commences (commencement includes demolition for CIL purposes where that forms part of the planning permission) by submitting the the following valid forms as relevant:

a) Who will pay the CIL liability;
b) Any relevant claims for exemption e.g. self-build extensions, annexes and self-build housing
c) Any claim for social housing relief or charitable relief

Thereafter, one of the development parties must notify the Council of the intended commencement date of the chargeable development by submitting a Commencement Notice to the Council no later than the day before the day on which the chargeable development is to be commenced. A copy must also be served on each person known as an owner of the relevant land.

Please email the completed Commencement Notice to: cil@swindon.gov.uk

Alternatively, you can post the Commencement Notice to: Planning Services, Swindon Borough Council, Civic Offices (Wat Tyler House Floor 5), Euclid Street, Swindon, SN1 2JH

On receipt of the Commencement Notice the Council will issue a Demand Notice to the liable person(s) setting out the total CIL chargeable amount payable on commencement of the development and precise details of payment arrangements.

Further Information

Further information and all CIL forms are available on the Planning Portal website at

www.planningportal.co.uk/info/200126/applications/70/community_infrastructure_levy and the Swindon Borough Council website at https://www.swindon.gov.uk/info/20112/community_infrastructure_levy_cil

For further information or if you have any questions regarding CIL please contact us at cil@swindon.gov.uk.

Yours sincerely,

Richard Bell
Chief Planning Officer
Inclusive Economy & Sustainability

On behalf of Swindon Borough Council, CIL Charging & Collecting Authority